
02:00 PM **LINE 9**

25-CIV-09639

ADERBAL OLIVEIRA JR. VS. DENIZE OLIVEIRA

ADERBAL OLIVEIRA JR.
DENIZE OLIVEIRA

SCOTT TALKOV

PLAINTIFF'S MOTION FOR 1) DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION AND 2) APPOINTMENT OF REFEREE

TENTATIVE RULING:

The court **GRANTS** plaintiff Aderbal Oliveira's "Motion for (1) Default Interlocutory Judgment of Partition; and (2) Appointment of Referee," filed March 17, 2026. The court has a few questions regarding plaintiff's "[PROPOSED] DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT OF REFEREE," which was lodged with the court on March 17, 2026. Plaintiff's counsel is **ORDERED TO APPEAR** at the hearing on August 12, 2026 at 2:00 p.m. to address the issues identified below.

This is a partition action. The evidence submitted with this Motion indicates that the parties, who were formerly married, each own a 50% interest in the property, a single-family residence located at 1749 Shoreview Ave, San Mateo, California (the Property). (Williamson Decl., ¶¶ 2-3; exh. 1 [Grant Deed]; exh. 4 [Title Report].) Plaintiff seeks to have the Property partitioned, thereby ending the co-ownership relationship. Defendant appears to currently reside in the Property.

On May 12, 2017, a divorce judgment was entered by this court in Case No. FAM0115683 (Divorce Action), providing that "[in] June of 2024, the house will be placed on the market for sale." According to plaintiff, since that time, the Property has not been listed for sale, and no agreement has been reached to do so. Defendant was personally served with the Summons and Complaint in this case, but has defaulted. (Moving papers, Exhibits 7-8.)

The court intends to **GRANT** plaintiff's request for entry of an interlocutory judgment of partition, and to appoint attorney Matthew Taylor to serve as Partition Referee. Before doing so, however, the court requests that plaintiff's counsel (or Mr. Taylor) appear to discuss the following questions about the "[PROPOSED] DEFAULT INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT OF REFEREE":

- The proposed order would grant the Referee the power and discretion to decide the appropriate manner of partition, which is not usually done. The Motion indicates that a partition in kind is not practicable here, and that a partition by sale is the most likely outcome. But the Motion does not ask the court to order a partition sale. Instead, it would provide the Referee with the discretion to decide the manner of partition. Normally, the court, not a referee, decides the manner of partition. Code of Civil Procedure, section 873.010, subdivision (a) states that the court appoints a referee to "divide or sell the property *as ordered by the court*." Counsel shall address why the interlocutory judgment

should not simply order a partition sale (particularly, given that the court in the dissolution case already found that the house should be listed for sale). The court is not inclined to grant the Referee the authority to decide the manner of partition.

- Section 3 “Listing Agreement” states that the Referee may hire *one or more* licensed real estate brokers/agents Why would more than one listing agent be necessary? The court has concerns about fees and costs involved in the partition sale process.
- Section 3 further states that “The Listing Agreement shall contain a provision that the broker’s commission for the Referee’s broker(s) shall not exceed 3.5%. The Court intends to change this to a maximum 2.5% commission to each broker or realtor, for total commissions of 5%.
- Section 9 states: “Contracts of the Referee with Professionals. The Referee is authorized to hire, employ, retain, and enter into and execute any contracts with any professionals or employees which the Referee deems necessary to assist them in the discharge of their duties.” What “contracts with professionals” does the Referee contemplate other than with the listing agent?
- Section 17 provides the Referee with authority and discretion to require defendant (who apparently resides in the Property) to vacate the Property, along with her personal belongings. Plaintiff’s moving papers also state: “The Parties shall vacate the Property prior to closing ...”

However, in paragraph 12 of the proposed Referee, Matthew Taylor’s, Declaration, he states: “While I do ask for the authority to obtain a writ of possession, as a practical matter, I generally allow cooperative parties to stay in possession of the Property during the partition.”

The court wishes to minimize the inconvenience and disruption to defendant, who apparently resides in the Property, possibly with children. The moving papers suggest that plaintiff wants the Referee to require that defendant vacate the Property within 30 days of entry of the Interlocutory Judgment. But that does not appear to be Mr. Taylor’s standard practice, and that may not be appropriate here. The court recognizes that in the parties’ May 2017 Judgment in the dissolution case, the court only stated that defendant may remain in the Property until June of 2024.

2:00 PM **LINE 10**

25-CIV-10154

ROBERT FOLEY, ET AL VS. COBALT POLYMERS, ET AL

ROBERT FOLEY
COBALT POLYMERS

GEORGE MOSCHOPOULOS
YANO L. RUBINSTEIN

DEFENDANTS COBALT POLYMERS AND BARRY SCHNUR'S DEMURRER TO CAUSE OF ACTIONS 2 AND 8-10 IN
PLAINTIFFS' COMPLAINT

TENTATIVE RULING:

Defendants Cobalt Polymers and Barry Schnur's Demurrer to the Second, Eighth, Ninth, and Tenth Causes of Action in plaintiff's Complaint are **SUSTAINED in part, with leave to amend** and **OVERRULED, in part**.

Any amended complaint must be filed within ten (10) days of notice of entry of the formal order.

A. Legal Standard

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John's Grill*), quoting *Alcorn v. Ambro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 (*Alcorn*).)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John's Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*).)

B. Second Cause of Action (Retaliation for Asserting Wage Rights, Labor Code, Section 98.6)

To establish a *prima facie* cause of action for retaliation under Labor Code, section 98.6, a plaintiff must prove three elements: (1) the plaintiff engaged in protected activity; (2) the employer subjected the plaintiff to an adverse employment action; and (3) a causal link exists between the protected activity and the adverse action. (*St. Myers v. Dignity Health* (2019) 44 Cal. App. 5th 301, 314.) The statute broadly prohibits any person from discharging, discriminating against, retaliating against, or taking any adverse action against an employee or applicant for employment who exercises rights protected under the Labor Code. (Lab. Code, §
